

26STCV02922 26STCV02922

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-21

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Case Number: 26STCV02922 Hearing Date: July 21, 2026 Dept: 512

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Yang

v. Xiao, et al. COMPL. FILED: 01-28-26

CASE NUMBER: 26STCV02922

NOTICE: OK

PROCEEDINGS: MOTION

FOR DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE

MOVING PARTY: Plaintiff

Xiaoyuan Yang

RESP. PARTY: None

MOTION FOR DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT

OF REFEREE

(CCP § 872.720)

TENTATIVE RULING:

Plaintiff Xiaoyuan Yang's unopposed

Motion for Default Interlocutory Judgment of Partition and Appointment of

Referee is GRANTED.

Status Conference Re: Partition is

scheduled for October 12, 2026 at 8:30 a.m. in Department 512 of the Stanley

Mosk Courthouse.

Moving party is ordered to

give notice to all parties including the defaulted party.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of July 17, 2026 ☐ Late ☒

None

REPLY: None

filed as of July 17, 2026 ☐

Late [X] None

ANALYSIS:

I.

Background

On January

28, 2026, Plaintiff Xiaoyuan Yang ("Plaintiff") filed a Verified Complaint for Partition

of Real Property against Defendants Na Xiao ("Xiao"), Honghua Shang ("Shang"),

and Does 1-10. (Verified Compl., p. 1.)

On

February 9, 2026, the Court found the instant case and Case No. 26STCV02902 to

be related. (2/9/26 Order.) The Court ordered Case No. 26STCV02902 to be the

lead case. (2/9/26 Order.)

On March

24, 2026, Xiao, proceeding pro se, filed an Answer.

On April

8, 2026, default was entered against Shang.

On April

10, 2026, Plaintiff filed a Notice of Recording of Pendency of Action Pursuant

to Code of Civil Procedure section 405.20 (Lis Pendens).

On April

30, 2026, Plaintiff filed the instant Motion for Default Interlocutory Judgment

of Partition and Appointment of Referee (the "Motion").

On May

12, 2026, Plaintiff filed a declaration made by Xiao attesting to Xiao's

support and consent of the Motion.

On May

29, 2026, Plaintiff filed an Amended Proposed Judgment.

To date, no Opposition to the Motion

has been filed.

II.

Legal

Standard

" '[P]artition' is 'the procedure for

segregating and terminating common interests in the same parcel of property.' "

(14859 Moorpark Homeowner's Association v. VRT Corp. (1998) 63

Cal.App.4th 1396, 1404-1405.) It is a "

' "remedy much favored by the law. The original purpose of partition was to

permit cotenants to avoid the inconvenience and dissension arising from sharing

joint possession of land. An additional reason to favor partition is the policy

of facilitating transmission of title, thereby avoiding unreasonable restraints

on the use and enjoyment of property.” ’ ’ ”

(Cummings v. Dessel (2017) 13 Cal.App.5th 589, 596.)

Code of Civil Procedure section

872.720, subdivision (a) provides: “If the court finds that the plaintiff is

entitled to partition, it shall make an interlocutory judgment that determines

the interests of the parties in the property and orders the partition of the

property and, unless it is to be later determined, the manner of partition.” (Code

Civ. Proc., § 872.720, subd. (a).)

Code of Civil Procedure section 872.210,

subdivision (a) provides: “A partition action may be commenced and maintained

by any of the following persons: (1) A coowner of personal property. (2) An

owner of an estate of inheritance, an estate for life, or an estate for years

in real property where such property or estate therein is owned by several

persons concurrently or in successive estates.”

(Code Civ. Proc., § 872.210, subd. (a).) Code of Civil Procedure section

872.210, subdivision (b) states that “an action between spouses or putative

spouses for partition of their community or quasi-community property or their

quasi-marital interest in property may not be commenced or maintained under

this title.”

Code of

Civil Procedure section 872.230 sets forth the requirements for a complaint seeking partition.

Code of Civil Procedure section 872.250

provides that “[i]mmediately upon filing the complaint, the plaintiff shall record a notice of the pendency of the action in the office of the county recorder of each county in which any real property described in the complaint is located.” (Code Civ. Proc., § 872.250, subd. (a).) “From the time of filing the notice for record, all persons shall be deemed to have notice of the pendency of the action as to the property described in the notice.” (Code Civ. Proc., § 872.250, subd. (d).)

III.

Discussion

The Motion, and underlying action, seeks a partition of the single-family residence located at 1383 S Gibbs St, Pomona, CA 91766, Assessor’s Parcel Number 8333-020-013 (the “Property”). (Motion, p. 2; Verified Compl., p. 1.) Plaintiff contends that the parties to this action each own a 33.33 percent interest in the Property. (Motion, p. 2.)

A.

Interlocutory

Judgment of Partition

The Motion is granted. The legal

requirements for an interlocutory judgment of partition have been met.

The law is that “an interlocutory

judgment in a partition action is to include two elements: a determination of

the parties’ interests in the property and an order granting the partition.” (Summers v. Superior Court (2018) 24

Cal.App.5th 138, 143, as modified June 27, 2018].)

First, where the pleadings do not

raise any question regarding the ownership of the property, there is no factual

issue for the Court to determine. (See,

e.g., Brown v. Brown (1950) 98 Cal.App.2d 142, 144-145 [finding in

partition action that trial court erred in ruling on parties’ respective

interests in real property because the pleadings did not raise the issue].)

Here, ownership of the Property is not

at issue since Shang is in default, Xiao filed an Answer agreeing to the

allegations in the Verified Complaint, Xiao filed a declaration in support of

the Motion, and the title history shows as follows:

On March 9, 2017, a grant deed

transferring the Property to ‘Na Xiao, a married woman as her sole and separate

property as to an undivided 33.1/3 % interest and Xiaoyuan Yang a married woman

as her sole and separate property as to undivided 33 1/3% interest and Honghua

Shang, a married man as his sole separate property as to undivided 33 1/3%

interest, all as tenants in common' was recorded in the Official Records of Los

Angeles County as Instrument Number 201702737437 (the "First Deed").

(Motion, Thomas Decl., ¶ 2, Exh. 1;

see also Motion, Thomas Decl., Exhs. 2-5.)

Plaintiff consents to the entry of an

interlocutory judgment of partition granting ownership of the Property as

follows: 33.33 percent to Plaintiff and 66.67 percent to Defendants, each

holding a 33.33 percent interest. (Motion, p. 6; Summers, *supra*, 24

Cal.App.5th at p. 143.)

Second, Plaintiff, who is a tenant in

common, is entitled to partition. " 'A co-owner of property has an absolute

right to partition unless barred by a valid waiver.' " (Orien v. Lutz (2017) 16 Cal.App.5th

957, 962, citing Code Civ. Proc., § 872.710, subd. (b).) As such, "if the party seeking partition is

shown to be a tenant in common, and as such entitled to the possession of the

land sought to be partitioned, the right is absolute." (Bacon v. Wahrhaftig (1950) 97

Cal.App.2d 599, 603.) Indeed, " 'the right to partition is absolute, and cannot

be denied, "either because of any supposed difficulty, nor on the suggestion

that the interest of the cotenants will be promoted by refusing the application

or temporarily postponing action." ' ' " (Priddel

v. Shankie (1945) 69 Cal.App.2d 319, 325.)

Here, the Verified Complaint and the

First Deed attached to the Motion demonstrate Plaintiff and Defendants are

tenants in common. (See Motion, Thomas Decl., Exh. 1; Verified Compl., ¶ 8,

Exh. 1.) The Verified Complaint alleges that “Plaintiff has never waived the

right to partition in writing or in any other manner.” (Verified Compl., ¶ 25.)

Plaintiff has not waived the right to partition. (Summers, supra, 24 Cal.App.5th

at p. 143.)

“[T]he manner of partition—i.e., a

physical division or sale of the property—is to be decided when or after the

parties’ ownership interests are determined, but not before.” (Id.; see Code Civ. Proc., § 872.720,

subd. (a) [providing that the “manner of partition” can be decided in the

judgment “unless it is to be later determined”].)

Here, partition in kind is unavailable

because the Property is a single-family residence. (See Butte Creek Island

Ranch v. Crim (1982) 136 Cal.App.3d 360, 365-367.) While the parties may agree upon a partition

by appraisal, there is no such agreement presented to the Court. (Motion, p.

9.)

Based on the foregoing, the Court

finds the elements for an interlocutory judgment have been met. As such, the

Court grants the motion for default interlocutory judgment of partition of the Property.

B.

Appointment

of Partition Referee

The law in a partition action is that:

“The court shall appoint a referee to divide or sell the property as ordered by

the court.” (Code Civ. Proc., § 873.010, subd. (a).) In appointing a referee:

“The court may: . . . Instruct the referee [and] [f]ix the reasonable

compensation for the services of the referee and provide for payment of the

referee’s reasonable expenses.” (Code Civ. Proc., § 873.010, subds. (b)(2)-(b)(3).)

“The referee or any party may, on noticed motion, petition the court for

instructions concerning the referee’s duties.” (Code Civ. Proc., § 873.070.)

Additionally, the referee has a broad range of authority over the Property as

provided in Code of Civil Procedure section 873.060, which provides that “[t]he

referee may perform any acts necessary to exercise the authority conferred by

this title or by order of the court.”

Code of Civil Procedure section 873.050

provides, “[n]one of the following persons shall be appointed a referee under

this title: (a) A clerk or deputy clerk of the court. (b) A former or

present partner or employee of the judge. (c) A relative within the third degree of the judge or the judge's spouse or the spouse of such a relative. (d) An owner of any interest in the property that is the subject of the action.” (Code Civ. Proc., § 873.050.)

Plaintiff requests that this Court

appoint a referee, Matthew L. Taylor (“Taylor”). (Motion, pp. 9-10.) Plaintiff

presents evidence that Plaintiff has located and confirmed the availability of

Taylor to act as the referee in this case. (Motion, Taylor Decl.) “Taylor has

been an attorney since 1995 with a practice in real estate and receiverships,

with a particular focus on partition referee work.” (Motion, p. 10, Taylor

Decl. ¶¶ 2-5.) The Motion provides Taylor’s resume, which indicates Taylor’s

appointment as a receiver in multiple other cases and appointment as a

partition referee in multiple cases. (Motion, p. 10, ¶ 3, Exh. 12.) Further, “Taylor

also served as in-house counsel for a receiver for 8 years before starting his

own law practice where he worked on another 15 receivership cases.” (Motion, p.

10, Taylor Decl. ¶ 2.) Taylor estimates that the total cost of most partitions

is approximately \$14,000. (Motion, p. 10, Taylor Decl., ¶ 9.)

In a declaration accompanying the

Motion, Taylor indicates that he is ready, willing and able to accept

Plaintiffs’ nomination as referee. (Motion, Taylor Decl., ¶ 8.) Taylor

indicates that he has no personal or professional affiliation with Plaintiff or

Plaintiff's attorney of record. (Motion, Taylor Decl., ¶¶ 10-11.)

Accordingly, the Court finds Taylor is

well-qualified to handle the referee appointment in this case.

C.

Instructions

for Partition Referee

The referee shall be authorized to

determine the manner of partition, and the referee shall prepare a report of

the referee's proceedings to this Court for approval. (Code Civ. Proc., §§ 873.210, 873.280.)

Plaintiff requests the following

instructions be given to the referee:

If the referee determines that the

Property should be sold, the referee shall be authorized to proceed. After the

referee has incurred any costs of repairs or other expenses necessary to

prepare the Property to be sold, which shall be recouped by the referee

following the sale, the Property shall be sold on an 'as-is' basis, without any

warranty, express or implied, except as to title. The sale is subject to

current taxes, covenants, conditions, restrictions, reservations, rights,

rights of way, and easements of record. Any encumbrances of record shall be

satisfied out of the proceeds of sale, provided that if any such encumbrance is

the result of judgments against any individual owner or if any voluntary liens

were incurred for the benefit of any individual owner, the costs of such satisfaction shall be charged

against the proceeds of sale that would otherwise be payable to said owner.

In the event that the referee

determines that a sale is most appropriate, the Property shall be listed and

sold on the open market through a realtor placing the Property on the MLS. The

Listing Agreement shall not provide for any blanket offer of the compensation

to any buyer's agent on any Multiple Listing Service in accordance with recent

judicial rulings on this topic. Real property taxes, rents, operating and

maintenance expenses, and premiums on insurance acceptable to the purchaser

shall be prorated as of the date of recording the conveyance. The costs and

expenses of the escrow shall be divided between the seller and the buyer in

conformity with the customs and practices prevalent in Los Angeles County. The

escrow shall close as soon as is reasonably possible after the confirmation of

any sale by the Court.

In the event that the referee proceeds

with a sale, Plaintiff proposes that Defendants and any other persons in

possession of the Property be ordered by this Court to vacate the Property

within thirty (30) days of the date of service of an interlocutory judgment

granted by this Court, and to remove all personal effects from the Property

during this time. Note that, as a practical matter, the partition referee would prefer the Property to be occupied to avoid issues with break ins, leaks, etc. so long as the occupants are cooperative with the partition process.

If Defendants and any other persons in

possession of the Property fail to so vacate and/or fail to remove all personal

effects from the Property, the costs and expenses reasonably incurred to

effectuate the implementation of these move-out provisions of the order shall

be charged to Defendants' portions as to any distribution relating to the

partition of the Property. Said costs and expenses shall include, but not be

limited to, referee's fees, attorneys' fees, moving costs, the costs of any

writ of execution provided to the Los Angeles County Sheriff, and any

consequential expenses attributable to delays in partitioning the Property.

The Court shall retain jurisdiction of

this matter to confirm the partition of the Property, to consider the issuance

of such orders as requested by the referee or either of the parties, to review

the reports of the referee, to issue whatever additional orders as may be

required to carry out the partition of the Property, and to consider whether

adjustments to the distribution of the net proceeds to the parties are

equitable and appropriate.

(Motion, pp. 10-12.)

The Court finds these instructions

reasonable and appoints Taylor referee with the abovementioned instructions for partition of the Property.

Thus,

the Motion is GRANTED.

The

Motion for Interlocutory Judgment of Partition is GRANTED. The Motion's request for appointment of Matthew L. Taylor as partition referee is GRANTED.

D.

Conclusion

& Order

For the foregoing reasons, Plaintiff

Xiaoyuan Yang's unopposed Motion for Default Interlocutory Judgment of

Partition and Appointment of Referee is GRANTED.

Status Conference Re: Partition is

scheduled for October 12, 2026 at 9:30 a.m. in Department 512 of the Stanley

Mosk Courthouse.

Moving party is ordered to

give notice to all parties including the defaulted party.